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California legislature approves $50 million to fight Trump administration in court

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California's Legislature on Monday approved a plan to fund potential lawsuits against President Donald Trump's administration, an action that represents the state's most direct rebuke to the White House to date.

The state Assembly approved a $50 million legal aid package on a party-line vote as part of a special session called by Gov. Gavin Newsom. Heated debate over the bills sparked an afternoon of rhetorical fireworks on the floor of the Assembly, where Democratic and Republican members exchanged broadsides over the state's relationship with Trump.

"Let me be blunt — right now, Californians are being threatened by an out-of-control administration in Washington that doesn't care about the Constitution and thinks there are no limits to its power," Assembly Speaker Robert Rivas (D–Hollister) said. "Increasingly, our own residents are being threatened by actions taken by the Trump administration, and it is our duty to rise to the moment."

The two bills now go to Gov. Gavin Newsom, who is expected to quickly sign them into law. One bill would allocate up to $25 million to the state attorney general for court battles with the Trump administration. Another would set aside $25 million for legal nonprofits to defend residents facing detention or deportation as a result of federal actions.

In the weeks since Trump took office, the state has joined lawsuits to challenge the president's executive actions on a birthright citizenship ban and his directive to freeze disbursements of nearly all federal funding.

However, Republicans have dismissed the legal aid bills as political posturing, arguing that the Legislature's attention is better focused away from Washington.

"For this body to appropriate $50 million to sue and block and obfuscate the president of the United States, I think, is outrageous," Assemblymember Bill Essayli (R–Corona) said. "We need to be focused on the state of California."

Before debate began on the two bills, Rivas spoke to the entire body at the front of the Assembly, an atypical move that followed days of hand-wringing among Democrats over the special session legislation.

"Given the many executive orders that have been issued over the past two weeks, I can say with clarity that we do not trust President Donald Trump," Rivas said.

On Jan. 31, Democrats scrapped a planned vote on the bills after a lengthy closed-door caucus meeting. Republicans had planned to force votes on amendments to clarify that the legal aid could not be used to defend immigrants convicted of a felony.

"We actually didn't spend the weekend talking about this amendment at all," Assemblymember Isaac Bryan (D–Los Angeles) said. "We spent the weekend talking about the message. We were thinking about the message we wanted to send to the millions of undocumented families, including trafficking survivors, who are terrified their cries for asylum and refuge will go unanswered."

On Monday, the authors of the bills, Sen. Scott Wiener (D–San Francisco) and Jesse Gabriel (D–Encino), published a letter to the chief clerk of the Assembly stating that none of the funding "is intended to be used for immigration-related services for individuals with serious or violent felony convictions."

Republicans pushed to add the clarification into the language of the bill, arguing that the letter did not provide strong enough guardrails. Democrats voted down an amendment to do that, which would have likely triggered the need for another vote on the bill in the Senate.

"Without these amendments, state resources could still flow to organizations that obstruct federal efforts to bring these criminals to justice," Assemblymember Leticia Castillo (R–Corona) said. "Protecting our communities and ensuring that criminals face the consequences of their actions should not be a partisan issue."

The bills could be the last action taken during the special session that began in December, a move that allows bills signed into law to take effect more quickly. Last month, Newsom expanded the scope of the session to include response to the fires in Los Angeles and passed a $2.5 billion fire relief plan.

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